

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

CASE OF CHEMODANOV AND OTHERS v. RUSSIA

(Applications nos. 62902/19 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

20 April 2023

This judgment is final but it may be subject to editorial revision.



In the case of Chemodanov and Others v. Russia,

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 30 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia [GC]*, nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as participants of public assemblies, namely the dispersal of these assemblies, as well as their arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention:

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, and having taken into account the issue of compliance with the six-month time-limit under Article 35 § 1 of the Convention (see *Saakashvili v. Georgia* (dec.), nos. 6232/20 and 22394/20, §§ 46-59, 1 March 2022, in which the Court addressed the COVID-related extension of the period in question), the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. The applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Kalyapin v. Russia*, no. 6095/09, § 76, 23 July 2019, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, concerning

different aspects of unlawful deprivation of liberty of the organisers or participants of public events; and *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences (CAO)).

V. REMAINING COMPLAINTS

13. Some applicants further raised additional complaints under Articles 5 and 6 of the Convention concerning other aspects of their detention and fairness of the administrative-offence proceedings. In view of the above findings (see paragraphs 11 and 12 above), the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

14. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

15. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicants' complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints concerning the dispersal of the public assembly and the other complaints under well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that there is no need to examine separately the remaining complaints under Articles 5 and 6 of the Convention about other aspects of their detention and the fairness of the administrative offence proceedings;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 20 April 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	María Elósegui President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	62902/19 25/11/2019	**Gennadiy Leonidovich CHEMODANOV** 1990	Pomazuyev Aleksandr Yevgenyevich Vilnius	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 02/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to the police station, detention there between 27/07/2019 and 29/07/2019 for the purpose of drawing up a record of administrative offence, as administrative suspect; no evidence/assessment of any "exceptional circumstances" under the CAO, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
2.	8495/20 03/02/2020	**Georgiy Georgiyevich SHEVCHENKO** 1991	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 24/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to the police station, detention between 27/07/2019 and 29/07/2019 as administrative suspect, and after the administrative offence record had been compiled on 27/07/2019: no evidence/assessment of any "exceptional circumstances" under the CAO, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	8582/20 03/02/2020	**Sergey Aleksandrovich STRELTSOV** 1984	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 28/08/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to the police station, detention on 27/07/2019 for the sole purpose of drawing up a record of an administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
4.	8646/20 03/02/2020	**Aleksey Yuryevich KALAYDA** 1976	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 12,000	Moscow City Court 04/09/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to the police station, detention on 27-28/07/2019 in excess of three hours, for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
5.	8674/20 03/02/2020	**Ilya Vitalyevich ARTYUSHIN** 1986	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 24/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to the police station, detention on 27/07/2019 in excess of three hours, for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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6.	8679/20 05/02/2020	**Artem Sergeyevich OSMANOV** 1991	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 18,000	Moscow City Court 02/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to the police station, detention on 27/07/2019 for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
7.	8682/20 05/02/2020	**Vitaliy Vladimirovich MARKOV** 1989	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 04/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to the police station, detention on 27/07/2019, for the sole purpose of drawing up a record of an administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
8.	8877/20 29/01/2020	**Ernest Moiseyevich VEYNBERG** 2000	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 15,000	Moscow City Court 22/11/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to the police station, detention between 27/07/2019 and 29/07/2019 as administrative suspect (administrative offence record compiled on 29/07/2019): no evidence/assessment of any "exceptional circumstances" under the CAO	4,000

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9.	31162/20 10/07/2020	**Vladimir Vladimirovich YEGOROV** 1968	Laptev Aleksey Nikolayevich Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 10/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention between 27/07/2019 and 29/07/2019 as administrative suspect "for compilation of administrative material" (administrative offence record compiled on 29/07/2019) - no evidence/assessment of any "exceptional circumstances2 under the CAO, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
10.	31222/20 10/07/2020	**Pavel Mikhaylovich KOLUSHEV** 1990	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	5-day administrative detention	Moscow City Court 10/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and escorting to a police station, detention between 27/07/2019 and 29/07/2019 as administrative suspect: no evidence / assessment of any "exceptional circumstances" under the CAO, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	5,000
11.	32020/20 23/07/2020	**Azamat Aymanovich BEK** 1998	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 30/10/2019	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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12.	32024/20 23/07/2020	**Ilya Olegovich KRASNOVSKIY** 1977	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 24/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station and detention on 27/07/2019 for the sole purpose of drawing up a record of administrative offence; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
13.	32112/20 23/07/2020	**Dmitriy Alekseyevich YAMANAYEV** 1992	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 28/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention on 27/07/2019 for the sole purpose of drawing up a record of administrative arrest	4,000
14.	32544/20 15/07/2020	**Vladimir Alekseyevich MATYUKHIN** 1969	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 16/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention on 27/07/2019 for the sole purpose of drawing up a record of an administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
15.	33472/20 22/07/2020	**Artem Andreyevich OVANESOV** 1984	Lawyers of former Memorial Human Rights Centre Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 22/10/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and detention on 27/07/2019 for the sole purpose of drawing up a record of administrative offence,	4,000

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								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	
16.	36904/20 07/08/2020	**Alvar Mikhaylovich BELOGUR** 2000	Mezak Ernest Aleksandrovich Saint-Barthélemy d'Anjou	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 08/11/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to the police station, detention between 27/07/2019 and 29/07/2019 for the sole purpose of drawing up an administrative offence record: no evidence/assessment of any "exceptional circumstances" under the CAO (administrative offence record compiled on 29/07/2019)	4,000
17.	36947/20 06/08/2020	**Anton Vadimovich TE** 1986	Yatsenko Irina Aleksandrovna Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 06/11/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest and detention on 27/07/2019 in excess of three hours for the sole purpose of drawing up a record of administrative offence (such record compiled on 30/07/2019 only), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
18.	37094/20 06/08/2020	**Artem Nikolayevich KORMILITSYN** 1989	Kostanova Anastasiya Yuryevna Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 06/11/2019	Art. 5 (1) - unlawful deprivation of liberty- arrest, escorting to a police station, detention on 27/07/2019 in excess of three hours, for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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19.	38449/20 07/08/2020	**Islam Zamirovich MARSHENKULOV** 1995		Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 19,000	Moscow City Court 14/11/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention on 27/07/2019 in excess of three hours, for the sole purpose of drawing up a record of administrative offence (such record compiled on 31/07/2019 only), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
20.	38590/20 10/08/2020	**Dmitriy Vladimirovich CHUMAKOV** 1994	Pikhovkin Aleksandr Viktorovich Moscow	Manifestation for fair elections to Mosgorduma Moscow 27/07/2019	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 12/11/2019	Art. 5 (1) - unlawful deprivation of liberty - arrest, escorting to a police station, detention on 27/07/2019 in excess of three hours for the sole purpose of drawing up a record of administrative offence, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

[1] Plus any tax that may be chargeable to the applicants.